

Claimant:

Peter Ferenc
Rammelkam 2
84036 Kumhausen, Germany
date of birth: 24.10.1964

Okresný súd Bratislava V

Prokofievova 12, 852 38 Bratislava V
podatelnaOSBA5@justice.sk
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10.7.2025

ACTION FOR DAMAGES

Defendant:

Všeobecná zdravotná poisťovňa, a. s.
Panónska cesta 2, 851 04 Bratislava
IČO: 35937874
represented by: Ing. Katarína Berová, manager of the health insurance dept.

Re: ACTION FOR DAMAGES FOR UNLAWFUL ENFORCEMENT – AMOUNT: EUR 10,000

I. Statement of facts

On 9 April 2025, the District Court of Banská Bystrica issued authorisation for enforcement no. 156EX 171/25 on the basis of the VŠZP enforcement title – arrears statement no. 2427017713. That title was issued for the period from January 2022 to May 2023 in the amount of EUR 687.70 + EUR 10 in costs.

At that time, however, the claimant was a citizen of the Slovak Republic with permanent residence and insurance in Germany. Under Regulation (EC) No 883/2004, only the law of a single Member State – Germany – applies to the claimant.

In a letter of 6 June 2025, VŠZP officially acknowledged that public health insurance in the SR ended on 30 August 2016 and that the claim under arrears statement no. 2427017713 was cancelled to EUR 0.00. Despite this, enforcement was carried out and the claimant's account was blocked: IBAN: SK59 0900 0000 0052 0995 7308. VŠZP insists on maintaining the EUR 10 fee.

On 26 February 2025 the bailiff unlawfully debited EUR 44.58 from me and the bank a fee of –EUR 8. On 10 June 2025 the bailiff debited EUR 41.68 and the bank a fee of –EUR 8, causing further pecuniary harm.

To date, as at 10 July 2025, the bailiff has, even after my request, not released my account and has not returned the funds withdrawn!

II. Legal assessment

Under Act No. 514/2003 Coll. on liability for damage caused in the exercise of public authority, the State and its bodies are liable for damage caused by an unlawful decision or by incorrect official procedure. In the present case there occurred:

- the incorrect registration of the claimant as a self-payer,
- the issuance of an unlawful arrears statement,
- the unjustified enforcement filing,
- the carrying out of enforcement, which interfered with the claimant's property rights.

The result was an interference with rights, a restriction on the use of the account, stress, and an impairment of the claimant's dignity and economic security.

1. The duty to communicate lies with the public institution

Under Act No. 71/1967 Coll. on administrative procedure (Code of Administrative Procedure) and Act No. 580/2004 Coll. on health insurance:

- the administrative body (VšZP) is obliged to establish the facts of the matter and to ensure service,
- if it cannot effect service, it may not draw any consequences against the addressee.

3. The arrears statement was issued without my having any opportunity to defend myself

- This is contrary to Art. 6 of the Convention for the Protection of Human Rights (right to a fair trial),
- as well as with the principle audiatur et altera pars ("let the other side be heard too").

"The entire process – from the incorrect registration, through the failure to serve, to the enforcement – took place about me, without my knowledge and participation. Such an exercise of public authority is reprehensible and incompatible with the principles of the rule of law. As a result, I was deprived of the right to defence, which constituted a gross interference with my fundamental rights."

This principle is supported:

In Art. 47 of the EU Charter of Fundamental Rights → the right to an effective remedy and a fair trial

In Art. 6 of the Convention for the Protection of Human Rights → the right to be duly informed and heard

And in Slovak law:

- § 3 of the Code of Administrative Procedure – the duty to act in cooperation with the party,
- § 17a of Act No. 580/2004 Coll. – the possibility to file objections to the arrears statement, of which I was not informed – meaning that I was deprived of the right to defence.

III. Means of evidence:

- Letter of VšZP of 6 June 2025 on cancellation of the claim (exhibit no. 1)
- Statement of VšZP of 16 June 2025 on insisting on EUR 10 of costs (exhibit no. 2)
- Confirmation of insurance in Germany since 2016 (substituted by a statutory declaration and proof of residence – Meldezettel)
- Scan of the blocked account (exhibit no. 3)
- Statutory declaration of the claimant on the interference and harm (exhibit no. 4)

IV. Relief sought (Petitum):

The claimant requests that the court deliver the following judgment:

1. Všeobecná zdravotná poisťovňa, a. s. shall be obliged to pay the claimant the sum of EUR 10,000 as damages, together with default interest from the day of service of the action until payment.
2. Všeobecná zdravotná poisťovňa, a. s. shall be obliged to reimburse the claimant the costs of the proceedings within 3 days of the judgment becoming final.



Respectfully

In Kumhausen, on 10.07.2025

Peter Ferenc

[Document signed with QES]

Applicant:

Peter Ferenc
Rammelkam 2
84036 Kumhausen, Federal Republic of Germany
date of birth: 24.10.1964

Okresný súd Bratislava V

Prokofievova 12, 852 38 Bratislava V

10.07.2025

Re: APPLICATION FOR EXEMPTION FROM COURT FEES under § 138(1) of the Civil Dispute Procedure Code (CSP)

I. Grounds of the application

I hereby request full exemption from the court fee in the proceedings for damages against Všeobecná zdravotná poisťovňa, a. s., which I bring on account of the unlawful procedure in issuing and enforcing the arrears statement and the subsequent enforcement.

I am a natural person who has long been in social and financial distress. Since 2016 I have permanently lived in the Federal Republic of Germany, where I am currently without income, without assets and in a state of personal insolvency. I filed an insolvency petition with a German court as a natural person – non-entrepreneur. The proceedings are currently ongoing.

I am not able to pay the court fee or any other costs of the proceedings without jeopardising my own subsistence. At the same time, the bringing of the action is well-founded and is based on the written statements of VŠZP itself, which acknowledged that no claim against me exists.

I also attach a statutory declaration on my financial circumstances and on the insolvency petition filed in Germany.

"I filed the insolvency petition as a natural person in Germany, but the court mistakenly treated it as an entrepreneurial one. I am currently preparing a new petition as a non-entrepreneur (Privatinsolvenz), which corresponds to my real situation – I am without income, without business and without assets."

II. Application

I request that the court, pursuant to § 138(1) CSP, decide to exempt me in full from payment of the court fee in the proceedings against Všeobecná zdravotná poisťovňa, a. s.



Peter Ferenc

In Kumhausen, Germany, on 10.07.2025

[Document signed with QES]

Statutory declaration on financial circumstances

I, the undersigned

Peter Ferenc

date of birth: 24.10.1964

permanent residence: Rammelkam 2, 84036 Kumhausen, Federal Republic of Germany

I solemnly declare that:

1. Since 2016 I have permanently lived in the Federal Republic of Germany.
2. I am currently without any regular income.
3. I receive no social benefits, support allowances or sickness insurance.
4. I own no property in the territory of the Slovak Republic or abroad, including real estate, vehicles, accounts and other assets.
5. I am in a state of personal insolvency and I filed an insolvency petition with the competent court in Germany as a natural person (non-entrepreneur). The proceedings are currently under examination.
6. All my ordinary living costs are covered solely by contributions from close persons, not from employment or business.

I make this declaration freely, knowingly and with full responsibility for the truthfulness of the data stated, which I am ready to substantiate credibly at any time.



Peter Ferenc

In Kumhausen, Germany, on 10.07.2025

[Document signed with QES]

Declaration on the status of the insolvency proceedings in Germany

I, the undersigned

Peter Ferenc

date of birth: 24.10.1964

permanent residence: Rammelkam 2, 84036 Kumhausen, Federal Republic of Germany

I declare the following:

I am a natural person without income and assets, who is in personal financial distress.

I filed an insolvency petition with the competent court in Germany, which was however incorrectly classified as "entrepreneurial". I am currently preparing a new insolvency petition as an ordinary natural person (Privatinsolvenz) in accordance with the actual situation, since I carry out no business activity and have never operated as a self-employed person in Germany.

After filing the new petition, I will submit to the Slovak court confirmation of admission to the insolvency proceedings.

I make this declaration as part of the supporting documents for the application for exemption from the court fee.



Peter Ferenc

In Kumhausen, Germany, on 10.07.2025

[Document signed with QES]

Statutory declaration on the interference and harm

I, the undersigned

Peter Ferenc

date of birth: 24.10.1964

permanent residence: Rammelkam 2, 84036 Kumhausen, Federal Republic of Germany

I solemnly declare that:

As a result of the unjustified conduct of Všeobecná zdravotná poisťovňa, a. s. (VŠZP), which issued arrears statement no. 2427017713 against me, I was subjected to enforcement proceedings no. 156EX 171/25, in which my bank account was blocked.

This enforcement took place without my being informed in advance, warned or duly instructed about the possibility of defence. No decision was served on me, the declared debt never existed and the claim was fabricated and later cancelled by VŠZP in full.

Nevertheless, cash was withheld from me by enforcement and access to the account was prevented, which caused me:

- a state of existential insecurity,
- considerable stress, deterioration of health and psychological tension,
- an impairment of my dignity as an EU citizen who has committed no wrongdoing.

I am convinced that this interference was contrary to the principles of the rule of law and good morals and constituted an abuse of power by a public institution.

I make this declaration as a supporting document for my action for damages.



Peter Ferenc

In Kumhausen, Germany, on 10.07.2025

[Document signed with QES]

List of annexes to the action:

1. Application for exemption from the court fee under § 138 CSP,
2. Statutory declaration on financial circumstances,
3. Short declaration on the status of the proceedings in Germany (the new petition is in preparation and concerns an ordinary natural person).
4. Statutory declaration on the interference and harm.